

Defendant General Motors LLC's Notice of Motion and Motion to Compel Plaintiff's Appearance and Testimony at Deposition and Production of Documents; and for Monetary Sanctions

TENTATIVE RULING

DEFENDANT GENERAL MOTORS, LLC'S MOTION TO COMPEL PLAINTIFF'S APPEARANCE AND TESTIMONY AT DEPOSITION AND PRODUCTION OF DOCUMENTS; AND FOR MONETARY SANCTIONS is DENIED. Per movant's own admission (Exhibit F to GM Motion to Compel), defense counsel was aware on May 18, 2026 that Plaintiff would not be appearing for the May 20, 2026 deposition. Regardless whether there was good cause for the postponement, Defendant had sufficient time to cancel the proceeding. Therefore, any expense incurred by showing up on the 20th with full knowledge the deposition would not be going forward, was of its own making.

Finally, there is no evidence provided of a meaningful meet and confer by GM to reschedule *after* the cancelled deposition. Plaintiff is the only one that provided such evidence of providing alternate dates (albeit after this motion was filed), to which GM purportedly did not respond.

For these reasons the motion is denied and sanctions are denied. However, the parties are ordered to appear for the motion hearing. At that time, the court intends to place the parties into a Zoom breakout room to meet and confer until a new deposition date within the next 30 days is agreed upon. That date will then be put on the record and enforced by the court, as necessary.

TRAN v. WISE AUTO GROUP, et al.
Case No. FCS055892

Motion for Final Approval of Class Action/PAGA Settlement

TENTATIVE RULING

Parties and any interested persons are to appear for hearing as scheduled. Absent any compelling arguments to the contrary raised at hearing, and applicable to all class members who have neither timely opted out nor objected, the court anticipates granting the final approval motion for the gross settlement amount of \$1,007,367.62, and approving almost all deductions requested in the final approval motion, including those for attorneys fees in the amount of \$335,789.21; litigation costs of \$139,600; PAGA allocation of \$50,000 (\$37,500 to LWDA, \$12,500 to aggrieved employees); and claims administration costs of \$11,250. The court intends to reduce the service awards from the claimed amount of \$45,000 (\$15,000 per named plaintiff) to the amount of \$30,000 (\$10,000 per named plaintiff).

PONGTORN v. RIZO, et al.